

		(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct. (h) No certificate was filed as required by Section 411.35." (Code Civ. Proc., § 430.10.) In this case, the court has quashed service of process of the summons. Therefore, Defendant Brian Davies is not required to respond to the Complaint. As a result, the Defendant Brian Davies' demurrer to the Complaint is moot. (See <i>McClatchy v. Coblentz, Patch, Duffy & Bass, LLP</i> (2016) 247 Cal.App.4th 368, 375 [trial court may dismiss demurrer as moot after granting motion to quash].) Defendant Brian Davies shall give notice of this ruling.
7	Singh vs. Montano 30-2024-01403527	<u>Motion for Sanctions</u> Plaintiff Yashdeep Singh's Motion for Discovery Sanctions; Request for Terminating Sanctions or in the Alternative for Order Compelling Deponent Mary Montano to Attend and Testify at Deposition and Monetary Sanctions in the Amount of \$5,254.50 is GRANTED in part and CONTINUED in part to August 17, 2026 at 10:30 a.m. in Department N15. Defendant Mary Montano is ORDERED to appear for deposition at a mutually agreeable date and time, and in the manner specified in the Plaintiff's Fifth Notice of Deposition of Mary Montano, within 21 days of this ruling. No later than August 12, 2026, Plaintiff Yashdeep Singh and Defendant Mary Montano shall file and serve a declaration stating under penalty of perjury whether Defendant Mary Montano has appeared for her deposition and if she has not, the reasons for her failure to do so. Defendant Mary Montano is ORDERED to pay to

		Plaintiff Yashdeep Singh sanctions of reasonable attorney's fees in the amount of \$5,254.50 within 21 days of this ruling. <u>Pending Motion</u> Plaintiff Yashdeep Singh moves for monetary sanctions and terminating sanctions against Defendant Mary Montano and for monetary sanctions against Defendant's former Counsel Kevin A. Spainhour and Defendant's current counsel John R. Ramirez. In the alternative, Plaintiff requests evidentiary sanctions against Defendant or that Defendant be ordered to appear for her deposition. <u>Standard for Non-Monetary Sanctions</u> The trial court has expansive authority over discovery issues. (<i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 596.) This authority includes the power to impose monetary, issue, evidence, terminating, or contempt sanctions against any person engaging in any misuse of the discovery process. (See Code Civ. Proc., § 2023.030, subd.s (a)-(e).) Misuse of the discovery process includes, but is not limited to, using a discovery method in a manner that does not comply with its specified procedures; employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden; failing to submit or to respond to an authorized method of discovery; and disobeying a court order to provide discovery. (See Code Civ. Proc., §§ 2023.010, 2030.300, subd. (e) [interrogatories], 2031.310, subd. (i) [requests for production of documents], 2033.290, subd. (e) [requests for admissions].) "The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses." (Code Civ. Proc., § 2023.030, subd.
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		(b); see also <i>NewLife Sciences, LLC v. Weinstock</i> (2011) 197 Cal.App.4th 676, 686-687.) In addition, “[t]he court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.” (Code Civ. Proc., § 2023.030, subd. (c); see also <i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559. Terminating sanctions are one of the most severe forms of sanctions and are imposed by: (1) striking out the pleadings, or parts of the pleadings, of any party engaging in the misuse of the discovery process, (2) staying further proceedings by that party until an order for discovery is obeyed, (3) dismissing the action, or any part of the action, or (4) rendering judgment by default against that party. (Code Civ. Proc., § 2023.030, subd. (d).) “The trial court may order a terminating sanction for discovery abuse ‘after considering the totality of the circumstances: [the] conduct of the party to determine if the actions were willful; the detriment to the propounding party; and the number of formal and informal attempts to obtain the discovery.’” (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal.App.4th 377, 390, quoting <i>Lang v. Hochman</i> (2000) 77 Cal.App.4th 1225, 1246.) In order to impose issue, evidence, or terminating sanctions, the party subject to more serious sanctions must have failed to comply with previously issued court orders and the failure must be willful. (See <i>Lee v. Lee</i> (2009) 175 Cal.App.4th 1553, 1559 [“[A]bsent unusual circumstances, such as repeated and egregious discovery abuses, two facts are generally prerequisite to the imposition of a nonmonetary sanction. There must be a failure to comply with a court order and the failure must be willful.”]; see also <i>Calvert Fires Ins. Co. v. Cropper</i> (1983) 141 Cal.App.3d 901, 904; <i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal.App.4th 486, 496; <i>Vallbona v. Springer</i> (1996) 43 Cal.App.4th 1525, 1545.) However, “[s]ome courts have held that the more serious sanctions may be imposed . . . even where no specific order has been violated, but those
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		cases have involved repeated and willful refusals to permit discovery or produce documents over a lengthy period of time which resulted in evidence becoming unavailable." (<i>Maldonado v. Superior Court</i> (2002) 94 Cal.App.4th 1390, 1399.) As the Court of Appeal has explained: T]he courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly. A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party's fundamental right to a trial, thus implicating due process rights. The trial court should select a sanction that is "tailor[ed] . . . to the harm caused by the withheld discovery." (<i>Lopez v. Watchtower Bible and Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 604, citations omitted, quoting <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) "The discovery statutes thus 'evinced an incremental approach to discovery sanctions, starting with <i>monetary</i> sanctions and <i>ending</i> with the ultimate sanction of termination. Although in extreme cases a court has the authority to order a terminating sanction as a first measure, a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective." (<i>Lopez v. Watchtower Bible and Tract Society of New York, Inc.</i>, <i>supra</i>, 246 Cal.App.4th at pp. 604-605, quoting <i>Doppes v. Bentley Motors, Inc.</i>, <i>supra</i>, 174 Cal.App.4th at p. 992, italics original; see also <i>Los Defensores, Inc. v. Gomez</i>, <i>supra</i>, 223 Cal.App.4th at p. 390 ["[A] decision to order terminating sanctions should not be made lightly."].) "The purpose of discovery sanctions 'is not to provide a weapon for punishment, forfeiture and the avoidance of a trial on the merits' but to prevent abuse of the discovery process and correct the problem presented." (<i>Parker v. Wolters Kluwer U.S., Inc.</i> (2007) 149 Cal.App.4th 285, 301, citations omitted, quoting <i>Caryl Richards Inc. v. Superior Court</i> (1961) 188 Cal.App.2d 300, 303; see <i>In re Marriage of Chakko</i> (2004) 115
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		Cal.App.4th 104, 109 ["In exercising its broad discretion to sanction discovery abuses, the trial court may impose any sanction authorized by statute that will enable the party seeking discovery to obtain the objects of the discovery sought."].) Thus, "[a] discovery sanction may not place the party seeking discovery in a better position than it would have been in if the desired discovery had been provided and had been favorable." (<i>Rail Services of America v. State Compensation Ins. Fund</i> (2003) 110 Cal.App.4th 323, 332.) In addition, "[d]iscovery sanctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interest of the party entitled to but denied discovery.'" (<i>Doppes v. Bentley Motors, Inc.</i>, <i>supra</i>, 174 Cal.App.4th at p. 992, quoting <i>Laguna Autobody v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 487.) For example, terminating sanctions are warranted where a party repeatedly failed to respond to discovery responses for nearly one year, and disregarded two court orders, including one order warning that terminating sanctions would be the next step. (<i>Jerry's Shell v. Equilon Enterprises, LLC</i> (2005) 134 Cal.App.4th 1058, 1069.) <u>Discovery Violations</u> Here, Plaintiff has presented evidence that Plaintiff's Counsel made several attempts to schedule the deposition of Defendant on mutually agreeable dates and noticed the deposition of Defendant on three separate occasions. (See Decl. of Steve Lopez (Lopez Decl.), ¶¶ 8-14, 16-19, Exh.s 2-7, 9-11.) However, Defendant failed to appear at any of the noticed depositions. (See <i>id.</i>, ¶¶ 15, 20-21, Exh.s 8, 15.) Plaintiff also submitted evidence that he then served Defendant with a 4th notice of deposition, setting the deposition for the mutually agreed upon date of February 13, 2026.Exh.(See <i>id.</i>, ¶ 22, Exh. 16.)
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		However, one day prior to the deposition date Defendant's counsel unilaterally canceled the deposition. (See <i>id.</i>, ¶ 23, Exh. 17.) Plaintiff presented evidence that he offered to reschedule the deposition and proposed alternative dates, but that Defendant did not respond. (See <i>id.</i>, ¶¶ 23-24, Exh.s 17-18.) Plaintiff then served a 5th notice of deposition, setting the deposition for March 23, 2026. (See <i>id.</i>, ¶ 24, Exh. 18.) Plaintiff submitted evidence that Defendant continued not to respond, did not serve an objection, did not file a protective order, did not propose alternative dates, and did not appear for her deposition on March 23, 2026. (See <i>id.</i>, ¶¶ 25-26, Exh. 19.) While Defendant argues that terminating sanctions should not be granted, she does not dispute that she repeatedly failed to appear at her noticed deposition after she had not objected to the deposition date or had agreed to the deposition date. Defendant's conduct with respect to her deposition constitutes a misuse of the discovery process that has substantially prejudiced Plaintiff's ability to prepare for trial. Nor is this the first time that the court has found Defendant to have abused the discovery process. This court previously ruled that Defendant had misused the discovery process in failing to abide by a court order requiring Defendant to serve responses to Form Interrogatories – General, Set One; Special Interrogatories, Set One; and Requests for Admissions, Set One, and the court ordered Defendant to pay additional monetary sanctions. (See ROA #256.) Thus, Defendant has willfully committed multiple acts of abuse of the discovery process that have stymied Plaintiff's ability to prepare for trial. Further, the court has imposed lesser sanctions but it does not appear that they have worked to gain Defendant's compliance with her discovery obligations
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		Thus, there is a basis in this case to award terminating sanctions. However, Defendant contends that her new counsel substituted into this case on February 9, 2026, and since then, has cooperated with Plaintiff's Counsel on discovery matters and that Defendant's new Counsel is prepared to produce Defendant for deposition prior to the August 17, 2026 trial date. Based on this fact, along with the harshness of terminating sanctions, the court will order that Defendant appear for her deposition and give Defendant one final chance to comply with the Civil Discovery Act and the court's order. Nonetheless, the trial date is drawing near and if Defendant continues her pattern of delaying and refusing to abide by her discovery obligations, and presents no good cause for her failure to do so, the court will grant terminating sanctions. (See <i>Jerry's Shell v. Equilon Enterprises, LLC, supra</i>, 134 Cal.App.4th at p. 1069 ["A court] is not required to have infinite patience in these situations. A party who is unwilling to, or whose counsel is incapable of, performing the obligations of litigation with diligence should not be surprised when the right to proceed is lost."]; see also <i>Los Defensores, Inc. v. Gomez, supra</i>, 223 Cal.App.4th at p. 390 ["[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction."].) <u>Standard for Monetary Sanctions</u> As the court has previously noted, the standard for imposition of monetary sanctions is lower than for non-monetary sanctions. (See <i>Ellis v. Toshiba America Information Systems, Inc.</i> (2013) 218 Cal.App.4th 853, 878; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1286.) A trial court has "every right to impose a monetary sanction to compel obedience to its lawful orders, or to punish disobedience and disrespect of the court's processes." (<i>20th Century Ins. Co. v. Choong</i> (2000) 79 Cal.App.4th 1274, 1278.)
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		Therefore, the court will award monetary sanctions for Plaintiff's failure to appear for her deposition. Plaintiff also seeks sanctions against Defendant's former Counsel Kevin A. Spainhour and Defendant's current Counsel John R. Ramirez. However, "monetary sanctions against the party's attorney require a finding [that] the 'attorney advis[ed] that conduct.'" (<i>Ghanooni v. Super Shuttle</i> (1993) 20 Cal.App.4th 256, 261, quoting Code Civ. Proc., § 2023, subd. (b)(1); see Code Civ. Proc., § 2023.030, subd. (a) [monetary sanctions may be imposed against "one engaging in the misuse of the discovery process, or <i>any attorney advising that conduct . . .</i>"], italics added.) In this case, there is insufficient evidence that Defendant's former or current Counsel advised the improper conduct. The court will deny the request for monetary sanctions as to Defendant's Counsels. Plaintiff shall give notice of this ruling.
8	Larimore vs. Metagenics LLC 30-2025-01455322	<u>Motion for Stay</u> The court does not have a written tentative ruling in this case. The parties or their counsel shall be ready to address the following issue: 1. Whether <i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736 applies in light of the court's prior ruling that this action is controlled by California Arbitration Act rather than the Federal Arbitration Act. (See ROA #48.) 2. If the Federal Arbitration Act applies in this case, whether only the substantive aspects of the Act apply in the courts of this state. (See (<i>Nixon v. AmeriHome Mortgage Company, LLC</i> (2021) 67 Cal.App.5th 934, 945; <i>Hernandez v. Sohnen Enterprises, Inc.</i> (2024) 102 Cal.App.5th 222, 240.) 3. If the California Arbitration Act applies in this case, whether Civil Procedure Code section 1281.4 mandate a stay in the circumstances of this case.